

FORMAL REQUEST — METROPOLITAN POLICE SERVICE

Recording and Assessment of Perjury Allegation

Case Reference: BV20D01752 | Criminal Referral File: CCR-6501-26-0100-000

Addressed to:

Sir Mark Rowley QPM

Commissioner of the Metropolitan Police Service

New Scotland Yard, Victoria Embankment, London SW1A 2JL

Copied to:

Stephen Parkinson, Director of Public Prosecutions, Crown Prosecution Service

Specialist Crime Command, Metropolitan Police Service

PC David Caldwell, Directorate of Professional Standards, Metropolitan Police Service

The 46 institutional recipients listed in the Accountability Map of 1 May 2026 (BCC)

From:

Nadia Zahmoul | Litigant in Person | nadia@rosekross.com | 19 May 2026

Address withheld throughout proceedings

Status of this request

This is a formal referral to the Metropolitan Police Service. It is addressed to the Commissioner because the requested action is the action of the Service as a whole, and because the Service has previously declined to record this allegation on a basis that does not engage the named published policy framework set out in the section below.

This referral is made as a supplementary submission to the existing criminal referral file CCR-6501-26-0100-000, opened with the Specialist Crime

Command on 28 April 2026. It is also a response to the email of PC David Caldwell of the Directorate of Professional Standards dated 8 May 2026, quoted in full in Section 5 below.

The factual basis on which this referral rests is set out in full in the accompanying public-record statement of even date, Public Record — Day 5 — The Perjury on the Face of the Sworn Record, sent under parallel cover. The legal framework on which this referral rests is set out in Section 3 below. The framework imposes duties on the Service that are mandatory under named published policy. A written reasoned response is required for any decision not to comply.

The duty to record — published policy and statutory framework

The Metropolitan Police Service operates under the Home Office Crime Recording Rules (HOCR) and the National Crime Recording Standard (NCRS), incorporating the National Standard for Incident Recording (NSIR). These rules were updated most recently on 9 April 2026 and are published at gov.uk/government/publications/counting-rules-for-recorded-crime. Compliance with the NCRS is identified by the College of Policing Code of Ethics as an example of meeting the professional standards required of police officers.

The recording threshold is the balance of probabilities. The HOCR provide:

“An incident will be recorded as a crime (notifiable offence) for ‘victim related offences’ if, on the balance of probability, it is more likely than not that a crime has been committed... A belief by the victim, or person reasonably assumed to be acting on behalf of the victim, that a crime has occurred is usually sufficient to justify its recording.”

This is the recording threshold under named published policy. It is not the criminal trial threshold (beyond reasonable doubt). It is not the civil threshold for tortious liability. It is the threshold at which a police force is required to record an allegation of a notifiable offence and to log an auditable incident report.

The recording timeline is mandatory. The HOCR provide:

“It is a national requirement that an incident should be recorded as a crime within a standard timescale of 3 x 24 hour periods from the time the incident is first logged. A maximum of seven days is allowed.”

Where the allegation is not recorded as a crime, an auditable incident report must be registered. The same rules provide:

“Where the initial report is not recorded as a crime, an auditable incident report must be registered... Where a crime is made to police and the individual dealing decides not to record it as such then they must make an auditable record of that decision and inform the reporting person why they will not be recording a crime.”

The offence is notifiable. Perjury under section 1 of the Perjury Act 1911 is an indictable-only offence with a maximum sentence of seven years. It is on the Home Office list of notifiable offences. It is therefore within the scope of crimes that, on report, must be recorded under HOCR unless the recording officer is satisfied to the contrary, with reasons recorded in writing.

The position is unambiguous. The Service is required, on the documents now placed before it, either to record this allegation as a notifiable crime within 72 hours (or, at the outer limit, seven days) under the HOCR/NCRS framework, or to register an auditable incident report with reasons in writing identifying the specific published-policy provision relied upon. There is no third option under the published framework. There is no discretion to refer the allegation back to the court before recording. The recording duty exists independently of any prior or contemporaneous judicial action.

The factual basis on the documentary record

On 16 January 2024 Mr Karim Nouredine Zahmoul, Respondent in BV20D01752, signed a Definitive Proxy Statement and Prospectus filed with the United States Securities and Exchange Commission as Director of Oxus Acquisition Corp (CIK 1852973; Registration No. 333-273967). Page 30 of that filing records his beneficial ownership of 50,000 Founder Shares at an approximate market value of \$565,000.

On 7 February 2024 the Business Combination triggering recognition of those shares was consummated. On 8 February 2024 the new company (Borealis Foods Inc., Nasdaq ticker BRLS) began trading on Nasdaq and Mr Zahmoul attended the listing in person in New York.

On 19 February 2024 Mr Zahmoul swore a Form ES2 in BV20D01752, on oath, valuing those same 50,000 shares at \$0. He repeated the \$0 figure under oath on 22 February 2024 and instructed his counsel to repeat it in submissions on 19, 26 and 28 February 2024.

The documentary contradiction is verifiable, in sixty seconds, against the SEC EDGAR public filings database under CIK 1852973. The full factual

chronology and the further documentary basis are set out in the accompanying statement and in the accompanying SEC Filings Excerpts and 34-Day Sequence exhibit.

Deflections pre-empted

The Applicant addresses below the bases on which a Service might decline to record or to assess this allegation. None of them is consistent with the published framework set out in Section 3.

(a) The position taken by the Directorate of Professional Standards on 8 May 2026. PC David Caldwell of the Directorate of Professional Standards wrote, in answer to a complaint that the perjury allegation had not been recorded, in the following terms:

"I have been asked to review your complaint regarding the police not recording your allegation of perjury. This may be due to the fact that, in the first instance, such an allegation should be raised directly with the court. The court is responsible for considering whether an offence of perjury may have been committed and for assessing any available evidence. If the court determines that there is sufficient basis to suggest that perjury has occurred, the matter can then be formally referred for criminal investigation. In light of this, I would advise that you raise your concerns with the court in the first instance, as they are best placed to review the circumstances and ensure the preservation of any relevant evidence."

The position set out in that response does not reflect the law and does not reflect the published guidance of the Crown Prosecution Service. Section 9 of the Perjury Act 1911, which once empowered judges to order perjury prosecutions, was repealed by section 28 of the Prosecution of Offences Act 1985 — forty-one years ago. No prior judicial finding of perjury is, or has been at any point since 1985, a precondition to a police investigation. The CPS Judicial Comments guidance (cps.gov.uk/prosecution-guidance/judicial-comments) is unambiguous:

"The final decision as to whether a Prosecution will be brought is that of the CPS... Where a judge or Magistrate believes that some evidence adduced at trial is perjured, he or she can recommend that there should be a police investigation. The absence of such recommendation does not mean that there is no justification for an investigation... Whether or not any suspected offence requires investigation is a matter for the police to assess on the facts of each case."

The 8 May 2026 response inverts the statutory framework. It places on the court a function — the determination of perjury as a precondition to investigation — that statute removed from the court in 1985 and that CPS guidance expressly disclaims. It simultaneously declines the function — assessing on the facts of the case whether investigation is required — that the same CPS guidance places on the police. The Applicant is asking, by this referral, that the Service apply the correct framework.

(b) The view that perjury is a court matter and not for the police.

The administration of justice offences set out in the Perjury Act 1911 are criminal offences against the state. They are indictable-only offences with a maximum sentence of seven years. They are not capable of being adjudicated as a court matter in the sense that they fall outside police function. The court is the venue for the trial of a perjury offence following charge by the CPS on a file built by the police. The police are the assessing and investigating authority. That position is set out in the CPS Judicial Comments guidance, in the CPS prosecution guidance on Public Justice Offences, and is the position reflected in the offence's classification in the Home Office notifiable offences list.

(c) The view that no judicial finding of perjury has been made. A judicial finding of perjury is not, and has not been since 1985, a precondition to police recording, assessment, or investigation. See the CPS Judicial Comments guidance quoted above. The Applicant therefore does not need to obtain a finding from a court before the Service is required to record the allegation. The Applicant has, in any event, formally placed the allegation before five judicial bodies on six occasions, none of which has engaged the question. The full closure of those routes is set out in Section 7 below.

(d) The view that this is a private financial dispute between former spouses. Perjury under section 1 of the Perjury Act 1911 is an offence against the administration of justice. It is not capable of being a private dispute. The fact that the false sworn statement was made in financial remedy proceedings between former spouses goes to the procedural context in which the offence was committed; it does not affect the nature of the offence or the duty to record. The Service has previously recorded perjury allegations arising in matrimonial proceedings; this allegation is not distinguishable on that basis.

(e) The view that the Applicant should pursue appeal or civil routes.

Those routes have been exhausted. The full record is set out in Section 7 below. The set-aside route under section 31F(6) of the Matrimonial and Family Proceedings Act 1984 and rule 9.9A of the Family Procedure Rules 2010 has been pursued and refused. The appeal route under Part 30 of the Family Procedure Rules has been pursued and refused. The CPR 52.30

reopening route has been pursued and refused. The judicial review route in the High Court has been pursued and refused twice. In any event, the existence of a parallel civil route does not relieve a police force of its NCRS recording duty in respect of a criminal allegation.

(f) The view that there is insufficient evidence to record. The recording threshold under NCRS is the balance of probabilities. The HOCR provide that a belief by the victim that a crime has occurred is usually sufficient to justify recording. The Applicant believes a crime has occurred and is the alleged victim of the conduct. Independently of that, the documentary record contains: (i) a public SEC Proxy Statement signed by the Respondent on 16 January 2024 valuing the same 50,000 shares at approximately \$565,000; (ii) the sworn Form ES2 of 19 February 2024 valuing those shares at \$0; (iii) the contemporaneous attendance notes of the trial recording the repetition of the \$0 figure across four trial days; (iv) the public Nasdaq trading record from 8 February 2024 onwards; (v) the Respondent's photographic attendance at the Nasdaq listing on the same day; and (vi) the published 8 May 2025 judgment of Mr Justice MacDonald recording the perjury allegation as a pleaded ground at paragraph 14(c). On any reading of the published threshold, the recording duty is engaged.

(g) The view that the Applicant should refer to Action Fraud, the Serious Fraud Office, or the National Crime Agency. Perjury is not within the remit of Action Fraud, which handles reports of fraud and cyber crime in England, Wales and Northern Ireland on behalf of the National Fraud Intelligence Bureau. It is not within the jurisdiction of the Serious Fraud Office, which investigates and prosecutes serious or complex fraud and bribery. It is within the operational reach of the National Crime Agency, which has been on copy throughout, and a criminal referral has been filed with the Specialist Crime Command of the Metropolitan Police Service (operational engagement recorded 28 April 2026 — file CCR-6501-26-0100-000). Perjury committed before the High Court in London is properly the function of the Metropolitan Police Service in the first instance.

What the Applicant requests

Three things, each separable from the others, each grounded in the named published framework set out in Section 3 above.

First. That the Service either (i) record the allegation set out in this referral and the accompanying statement as a notifiable crime under the Home Office Crime Recording Rules and the National Crime Recording Standard within 72 hours of receipt of this referral (or, at the outer limit specified by the HOCR, within seven days), and provide the Applicant with the CRIME reference number; or (ii) register an auditable incident report under NSIR

and provide the Applicant with the incident reference number and written reasons identifying the specific HOCR/NCRS provision relied upon for not recording the allegation as a crime. Either outcome is consistent with the published framework. Doing neither is not.

Second. That the Service assess the allegation on the facts in accordance with the framework set out in the published CPS Judicial Comments guidance, namely that whether the suspected offence requires investigation is a matter for the police to assess on the facts of each case. The assessment is requested on the documents now placed before the Service, which include the SEC filings extracts, the 34-Day Sequence exhibit, the 6 March 2024 email to the trial judge, the D-11 Application Notice of 7 March 2024, the approved transcript of the 8 May 2025 judgment, and the 153-page Exhibit NZ1 SEC Filings Index.

Third. That the Service provide the Applicant with a written reasoned response within 14 days of the date of this referral, identifying either (a) the CRIME reference number under which the allegation has been recorded and the assessment outcome under the CPS framework; or (b) the specific basis under the Home Office Crime Recording Rules, the National Crime Recording Standard, and the CPS Judicial Comments guidance on which the Service has decided not to record and to assess. Compliance with the NCRS is identified by the College of Policing Code of Ethics as an example of meeting the professional standards required of police officers. A reasoned written response identifying the published-policy basis for any decision is therefore consistent both with the Service's NCRS obligations and with the standards of professional conduct expected of its officers.

No alternative route remains open

Before approaching the Metropolitan Police Service, the Applicant placed the question whether the sworn statement of \$0 in BV20D01752 was true or false before every judicial, supervisory, and parliamentary route available under English law. Each route has been formally engaged and each route has either declined to determine the question or has refused permission to seek a determination. The closed routes are listed below.

- **Trial court — 18 April 2024.** MacDonald J ([2024] EWFC 79), paragraph 5: the D-11 application of 7 March 2024 raising the Oxus perjury allegation, with full supporting documentary evidence, was dismissed in a single sentence — "not proper to take into account" — without reasons.
- **Trial court (set-aside) — 8 May 2025.** MacDonald J, set-aside application dismissed. At paragraph 14(c) the judge records the

pleaded ground ("the husband has committed perjuries regarding the Oxus shares"); at paragraph 48 the judge declines to engage with the substance, stating that the asset "was dealt with on the basis that those shares did not constitute matrimonial property" — a basis that does not engage the perjury question.

- **Appellate court (permission to appeal) — 23 December 2024.** Moylan LJ refused permission to appeal. On Oxus, the basis for refusal was that "the judge was entitled not to consider evidence sent to him after the hearing had concluded" — a basis that does not engage the perjury question, since the Business Combination closed on 7 February 2024, twelve days before trial, and the documentary evidence was a record of a pre-existing public fact.
- **Appellate court (CPR 52.30) — 4 August 2025.** King LJ refused the CPR 52.30 application to reopen the appeal, treating the Oxus issue as a factual finding question reviewable only on *Volpi v Volpi* grounds. A perjury allegation is not a factual finding question; it is a question whether a sworn statement was true.
- **Supervisory court (Judicial Review) — 11 March 2026 and 5/7 May 2026.** In AC-2025-LON-004293, the Applicant filed for judicial review of the Secretary of State for Justice and HMCTS on five grounds. Oxus was one ground: that no judicial act had been identified determining whether the sworn statement was true or false. Permission was refused by Collins Rice J on the papers (11 March 2026, totally without merit), the order characterising the entire claim as concerning "criminal complaints" against the husband. Permission was refused again on renewal by Goose J on 5 and 7 May 2026. No specific judicial act was identified determining the Oxus question.
- **Attorney General — 21 May 2025.** Formal referral filed with the Attorney General. No substantive response has been received.
- **House of Commons Justice Committee — 7 April 2026.** Formal written submission specifically placing the Oxus perjury question before the Committee, supported by the analytical material. No substantive response has been received.
- **Metropolitan Police Service Directorate of Professional Standards — 8 May 2026.** PC David Caldwell's email of 8 May 2026 declined to record the allegation on the basis that it should first be raised with the court — a basis addressed in Section 5(a) above.

The trial court has declined to determine the question. The appellate court has declined to determine the question. The supervisory court has declined to permit the seeking of a determination. The Attorney General has not responded. The Justice Committee has not responded. The Directorate of

Professional Standards has referred the matter back to the court. The Metropolitan Police Service, as the investigating authority for indictable offences committed in its area of operation under the framework set out in Section 3 above, is the institution that the published framework places the function on.

Standing of the Applicant

The Applicant is the alleged victim of the conduct described in the accompanying statement. The cost cascade of approximately £1,055,654.50, plus an indemnity costs order to be assessed, has been imposed on the Applicant on the basis of a financial settlement constructed from an asset schedule from which the \$565,000 Oxus shareholding was excluded on the strength of the sworn statement now alleged to be perjured. The Applicant is a litigant in person across six live High Court proceedings, operating without representation, without participation measures, and without income. The Applicant is autistic (NHS diagnosis, Central London Adult Autism Service, June 2025) and has Post-Traumatic Stress Disorder, chronic since 2013, treated continuously by Professor Gerald Libby FRCP FRCPsych.

Closing

This is a formal referral made under the named published framework set out above. The framework imposes mandatory duties on the Service: the recording of notifiable offence allegations within 72 hours (or seven days at the outer limit), at the balance-of-probabilities threshold, with the victim's belief usually sufficient; the registration of an auditable incident report with written reasons in any case in which the allegation is not recorded as a crime; the assessment of the allegation on the facts under the framework set out in CPS Judicial Comments guidance. Compliance with the NCRS is identified by the College of Policing Code of Ethics as an example of meeting the professional standards required of police officers.

The Applicant invites the Commissioner of the Metropolitan Police Service to discharge the function the published framework places on the Service: to record the allegation within the published timeline, to assess it on the facts, and to provide a written reasoned response within fourteen days. The Applicant has no further institutional route by which to seek determination of the question.

This referral is made on the public record.

Nadia Zahmoul

Litigant in Person

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19 May 2026

Veritas Numquam Perit

Documents accompanying this referral

Attached to this email:

- Public Record — Day 5 — The Perjury on the Face of the Sworn Record (19 May 2026).
- Oxus Acquisition Corp — The 34-Day Sequence. Documentary timeline.
- SEC Filings Excerpts (CIK 1852973). Pages 30, 43, 245–250, 287, 340 of the Definitive Proxy Statement and Prospectus of 16 January 2024.
- Email of 6 March 2024 to the trial judge (PDF rendition), with both counsel on cc.
- D-11 Application Notice — Oxus False Representations (7 March 2024). The Applicant's formal pleaded perjury application, signed under statement of truth.
- Exhibit NZ1 — Oxus Acquisition Corp SEC Filings Index (153 pages). The Applicant's chronologically ordered annotated index of every Oxus SEC filing from April 2021 through 2024.
- Approved transcript of the 8 May 2025 judgment in BV20D01752, produced at public expense and provided to the Applicant by the clerk of the trial judge by email of 18 June 2025.

Cited by published URL:

- Home Office Crime Recording Rules — gov.uk/government/publications/counting-rules-for-recorded-crime
- National Standard for Incident Recording — gov.uk/government/publications/the-national-standard-for-incident-recording-nsir-counting-rules
- Crown Prosecution Service, Judicial Comments — cps.gov.uk/prosecution-guidance/judicial-comments
- Crown Prosecution Service, Public Justice Offences — cps.gov.uk/prosecution-guidance/public-justice-offences
- Perjury Act 1911, section 1 — legislation.gov.uk/ukpga/Geo5/1-2/6
- Prosecution of Offences Act 1985, section 28 — legislation.gov.uk/ukpga/1985/23

- College of Policing Code of Ethics — college.police.uk